

parties to enforce the settlement until performance in full of the terms of the settlement.

California courts have interpreted section 664.6 as creating “a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met.” (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429.). A trial court hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732, quoting *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) “The trial court may not create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*Ibid.*) “Thus, a trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented ... to the material terms of the settlement.” (*Ibid.*)

Here, because there is no writing executed by both parties, the Court cannot enter judgment on the same. The agreement was reduced to *two* separate writings, one of which plaintiff accepted, the other which defendants accepted. It is not possible to conclude there was a meeting of the minds given these circumstances. While the Court might have accepted an argument that the terms supplied by defendants were not material at one point in time, plaintiff’s subsequent conduct, such as refusing to accept the new terms, suggests they *were* material. In addition to simply refusing to sign, plaintiff took actions requiring defendants to further incur attorneys’ fees, such as signaling an intent to amend the complaint, and noticing discovery.

As a result, there is not a “writing signed by the parties outside of the presence of the court” within the meaning of Code of Civil Procedure section 664.6(a), such that this motion could be granted. Accordingly, the request for sanctions is also denied.

9. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

***HEARING ON MOTION IN RE: RECONSIDERATION OF THE COURT'S ORDER ON DEFENDANT DAMIEN SEAN LAMONT ROSS' MOTION FOR SUMMARY JUDGMENT**

FILED BY: AMAZON.COM SERVICES LLC

TENTATIVE RULING:

Before the Court is Defendant Amazon.com Services LLC’s Motion for Reconsideration of the Court’s Order on Defendant/Cross-Complainant Damien Sean Lamont Ross’ Motion for Summary Judgment. The Court notes that Defendant Sokolovski filed a ‘joinder’ regarding Amazon’s motion for reconsideration.

Defendant/Cross-Complainant Ross’ Request for Judicial Notice is **granted**. (Cal. Evid. Code §452 (d).)

Factual and Procedural Background

On January 31, 2025, Ross filed his motion for summary judgment. On May 29, Amazon filed its opposition papers. Defendant Sokolovski filed an opposition on June 6. The motion was set for hearing on June 20, 2025.

The motion was directed toward six separate pleadings. As noted by the Court, each of these

pleadings represented a separate ‘action.’ In accordance with California Code of Civil Procedure section 437c, a “party may move for summary judgment in **an action** or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding, or “a party may move for summary adjudication as to one or more causes of action **within an action.**” (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.)

Ross did not point to any authority which allowed him to file a single motion for summary judgment directed toward pleadings in six separate actions. The Court noted that it initially “was inclined to deny the MSJ without prejudice and require Mr. Ross to re-file separate MSJs directed toward each pleading to which he wanted a ruling.” As most of the parties did not oppose the MSJ, the court determined it would move forward with ruling on it.

While Defendant Amazon was not listed as a party against whom Mr. Ross was directing his motion, it filed an opposition to the MSJ.

The Court issued its tentative ruling on June 19. In the ruling, the Court noted:

“It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion.” (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.) From the pleadings cited by Mr. Ross, as well as the Court’s review of the pleadings, none of the complaints/cross-complaints involve Mr. Ross versus Amazon. There is no complaint filed by Amazon that names Mr. Ross as a defendant. Nor is there a Cross-Complaint filed by Amazon that identifies Mr. Ross as a Cross-Defendant.

As such, the Court determined that since “there is no pleading wherein Mr. Ross and Amazon have direct claims against each other, the Court will not consider Amazon’s opposition to the MSJ.”

Likewise, the Court determined that Defendant Sokolovski did “not have standing to oppose Mr. Ross’ MSJ with respect to claims asserted by the Taylor and Espinoza/Cerna plaintiffs” and as such, the Court determined it would not consider her opposition with respect to those actions.

The Court went on to determine that Ross met his initial burden to show that the ‘sudden emergency’ defense applied as to him. As none of the plaintiffs in the Taylor or Espinoza/Cerna matters filed oppositions, and the Court determined that Amazon and Sokolovski did not have standing to oppose the motion, the Court granted Ross’ MSJ as to the Taylor and Espinoza/Cerna complaints. As such, Ross’ MSJ was also granted as to the indemnity cross-complaints of the other parties – as there was a finding of no fault on the part of Mr. Ross.

No party contested the tentative ruling issued on June 19. Accordingly, it became the order of the Court. (Local Rule 3.43 (b).) Thereafter, on June 24, 2025, Ross filed and served a “Notice of Entry of Order on Defendant/Cross-Complainant’s Ross’ Motion for Summary Judgment.” On September 5, 2025, the Court entered the Order Granting Defendant Damine Sean Lamont Ross’ Motion for Summary Judgment. That Order notes that Ross was ordered to give notice of the ruling and did so on August 26, 2025. The POS attached to the Order confirms such notice was given on that date.

Standard of Review

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, “based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states “what application was made before, when and to what judge, what order or decisions were made,

and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

The basis of the Court’s earlier ruling was that there was no authority of which it was aware – or that any party presented – that indicated that a defendant that was not a party to the summary judgment motion at issue had standing to oppose such a motion. That tentative ruling was issued on June 19, 2025. It became the final order of the Court on September 5, 2025, when the Court entered the Order Granting Defendant Damien Sean Lamont Ross’ Motion for Summary Judgment.

In its motion for reconsideration, Amazon cites to *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697, which was published on June 30, 2025 – a date between the tentative ruling and the Court’s final order. That case addressed this specific issue, namely, as summarized by the Fourth Appellate District:

This case raises an issue of first impression under California law: when a defendant moves for summary judgment, but the plaintiff does not oppose the motion, may another party oppose the motion? We hold that the party may do so if that party and the defendant are adverse to one another. We further hold that there need not be cross-claims between those parties for them to be adverse to one another. (*Id.* at 699.)

As noted above, *RND Contractors, Inc.* was published after the Court’s tentative ruling but before the final order was entered. This case of first impression makes it clear that the Court should have considered Amazon’s and Sokolovski’s oppositions to Ross’ MSJ.

Whether under the statutory authority to reconsider under section 1008, or the Court’s own inherent authority, it is clear the Court should reconsider its earlier Order based on this new authority.

Accordingly, Amazon’s motion for reconsideration is **granted**. The Order granting Ross’ MSJ dated September 4, 2025, and filed September 5, 2025, is vacated.

Based on the above, the Court reconsiders and reevaluates Ross’ MSJ below with the benefit of reviewing both Amazon and Sokoloski’s oppositions.

Defendant/Cross-Complainant Damien Sean Lamont Ross’ Motion for Summary Judgment and Summary Adjudication.

Standard

Summary adjudication is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., §

437c (p)(2).)

“When a defendant moves for summary judgment on the ground there is an affirmative defense to the action, the burden shifts to the plaintiff to show there is one or more triable issues of material fact regarding the defense after the defendant meets the burden of establishing all the elements of the affirmative defense.” (*Jessen v. Mentor Corp.* (2008) 158 Cal.App.4th 1480, 1484.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).) “All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment.” (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 757 quoting *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.)

Analysis

The Taylor and Espinoza/Cerna Complaints

As noted above, there are two separate Complaints which assert direct claims against Mr. Ross. Each of those Complaints allege wrongful death/negligence claims against Mr. Ross based his alleged negligence in stopping his vehicle in the #1 lane of the I-80. (Taylor Complaint ¶ 18; Espinoza/Cerna Complaint ¶ 15, 27.) Mr. Ross asserts the same defenses as to each Complaint. Neither of those parties submitted an opposition to Mr. Ross’ MSJ. As such, the Court will address those claims together.

In its earlier ruling, the Court treated Ross’ MSJ as unopposed since it did not consider the oppositions filed by Amazon and Sokolovski. As outlined above, based on the ruling in *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697, the Court will now re-review Ross’ MSJ in light of the arguments raised by those parties.

“Sudden Emergency” or “Imminent Peril” Defense

Ross argues that the ‘sudden emergency’ doctrine provides a complete defense to the claims against him. (The Court notes that this doctrine has several different names including the ‘imminent peril’ or ‘inevitable or unavoidable accident’ doctrine. For ease of reference, the Court will refer to it as the ‘sudden emergency’ doctrine.)

“Under the ‘sudden emergency’ or ‘imminent peril’ doctrine, ‘a person who, without negligence on his part, is suddenly and unexpectedly confronted with peril, arising from either the actual presence, or the appearance, of imminent danger to himself or to others, is not expected nor required to use the same judgment and prudence that is required of him in the exercise of ordinary care in calmer and more deliberate moments.’” (*Abdulkadhim v. Wu* (2020) 53 Cal.App.5th 298, 301-02 quoting *Leo v. Dunham* (1953) 41 Cal.2d 712, 714.) “A party will be denied the benefit of the doctrine ... where the party’s negligence causes or contributes to the creation of the perilous situation.” (*Ibid.* quoting *Pittman v. Boiven* (1967) 249 Cal.App.2d 207, 216.)

“The basis of the rule is ‘that the actor is left no time for thought, or is reasonably so disturbed or excited, that he cannot weigh alternative courses of action, and must make a speedy decision, based very largely upon impulse or guess. Under such conditions, the actor cannot reasonably be held to the same conduct as one who has had full opportunity to reflect, even though it later appears that he

made the wrong decision, which no reasonable man could possibly have made after due deliberation....” (*Schultz v. Mathias* (1970) 3 Cal.App.3d 904, 912 citations omitted.) “The test is whether the actor took one of the courses of action which a standard man in that emergency might have taken, and such a course is not negligent even though it led to an injury which might have been prevented by adopting an alternative course of action.” (*Id.* at 912-13.)

Is the Doctrine an Affirmative Defense?

Amazon first argues that the sudden emergency doctrine is an affirmative defense and as such Ross has an initial burden to show that undisputed facts support each element of the affirmative defense. (Opp. at 1:7-21.) Amazon cites *Shiver v. Laramie* (2018) 24 Cal.App.5th 395, 399 for the proposition that it is an affirmative defense. While *Shiver* does state that the “affirmative defense of the sudden emergency doctrine, also referred to as the imminent peril doctrine, is set forth in CACI No. 452,” it does not actually hold that it is an affirmative defense. That statement is, at best, mere dicta as to whether the doctrine is an affirmative defense, as the basis for that statement is not discussed or addressed in the opinion.

Curiously, Amazon takes the exact opposition position in its Reply in support of its own motion for summary adjudication/judgment – which is at issue on this day as well. There, Amazon argues that the sudden emergency doctrine is not an affirmative defense. It cites, among other things, the California Supreme Court opinion of *Polk v. City of Los Angeles* (1945) 26 Cal.2d 519, 543 where the Court stated the sudden emergency doctrine “**is not an affirmative defense** and the burden of proof rests upon plaintiff to prove negligence and proximate cause by a preponderance of the evidence.” (*Ibid.* emphasis added.)

The *Polk* Court cited the earlier case of *Jolley v. Clemens* (1938) 28 Cal.App.2d 55 with approval for its discussion and analysis of the issue. There, the Court found that “the claim that an accident was unavoidable is never legitimately an affirmative defense at all; that its whole purpose has already been served if the denials in the answer adequately respond to the charges made.” (*Id.* at 65.) With regards to arguments that an accident was unavoidable:

“... as a matter of pleading they are necessarily and sufficiently put in issue by a complaint on the one hand asserting an injury to have been proximately caused by something alleged to have been negligently done or omitted by the defendant and, on the other hand, an answer denying these averments.”

Amazon’s observation that the CACI instructions do not label the ‘sudden emergency’ doctrine as an affirmative defense supports this position. Based on the above, the Court finds that the ‘sudden emergency’ doctrine is not an affirmative defense.

Ross’ Position

Mr. Ross argues that he inspected his vehicle before driving it that day. (Ross Depo. at 76:12-21.) The tires on his vehicle were replaced in November 2019, less than a year before the incident. (Ross Decl. ¶ 3, Evid. Ex. 16.) Prior to the incident, Mr. Ross was driving in the number 1 lane of the westbound I-80. (Ross Depo. at 14:14-19.) After crossing the Carquinez Bridge, Mr. Ross was near the Hercules and Mill Valley exit when his left rear tire blew out. (*Id.* at 14:20-15:1.)

The tire blowout made it difficult to control his car. (*Id.* at 14:14-16:16.) While trying to control his car, he put his hazard lights on. (*Id.* at 16:19-24.) He then slowed and stopped in the middle of the #1 lane. (*Id.* at 17:4-21.) There was a “decent amount of cars” on the freeway that were “driving pretty fast.”

(*Id.* at 17:22-18:5.) Based on this, he determined that he could not safely get off the freeway to the right, and there was no shoulder to the left to move into. (*Id.* at 17:22-18:9.) At this point, Mr. Ross called 911 and then AAA to attempt and get assistance. (*Id.* at 18:10-19:11.)

He remained in his car, making those calls, until he saw a car slow and stop behind him. (*Id.* at 19:12-20:15.) At that point, he exited his vehicle to assess his tire. (*Ibid.*) The car that stopped behind him did not impact his vehicle. (*Id.* at 20:16-23.) Shortly thereafter, a second car came up and impacted the first car behind him. (*Id.* at 21:5-24:8.) At that point, Mr. Ross called 911 again to report the accident. (*Id.* at 25:8-10.) At some point shortly thereafter, a fourth car impacted the third car at speed, which resulted in a chain impact pushing car three into car two and car two into Mr. Ross' vehicle. (*Id.* at 32:22-33:16.)

Mr. Ross contends that his actions were reasonable under the circumstances and that he reasonable and the sort that a "standard man in that emergency might have taken." (*Schultz*, supra, 3 Cal.App.3d at 912-13.) Mr. Ross' testimony indicates that he had no reason to suspect that he might get a tire blowout prior to the time of the incident. The tires were relatively new and he visually inspected them before his trip that day. While he did consider trying to move to the right to get off the freeway, he determined that was not feasible given the amount and speed of traffic in those lanes.

Amazon and Sokolovski's Oppositions

Both parties argue that there are disputed issues of material fact as to each of the elements of the 'sudden emergency' doctrine which make it inappropriate for summary adjudication. To begin with, they both contend there is dispute evidence that the emergency was sudden and unexpected.

As noted by Amazon, while Mr. Ross asserts that he inspected his vehicle before the trip at issue, the inspection only included a visual inspection of the tires with respect to whether they looked adequately inflated. (Ross Depo. 76:12-77:9.) Mr. Ross did not use a pressure gauge to determine if the tires were actually properly inflated. (*Ibid.*) There is also no evidence indicating Mr. Ross' expertise or experience in begin able to determine the condition and/or durability of car tires. Additionally, the invoice showing new tires were purchased in November 2019 is inadmissible. (See objections.)

There is also a dispute as to whether Mr. Ross was aware of potential problems with his car/tires sufficiently prior to the blowout to have allowed him to exit the freeway before it occurred. There is conflicting – or at least ambiguous – testimony regarding Mr. Ross noticing a lean in his vehicle approximately 1.5-2 minutes prior to the blowout. (Ross Depo. 71:14-74:5.) Mr. Ross testified that his car "was driving abnormally [] on the sharp right turn as you get off the Carquinez Bridge." (*Id.* at 71:21-23.) Amazon and Sokolovski argue this was sufficient warning to Mr. Ross that something was amiss.

Amazon and Sokolovski also dispute the reasonableness of Mr. Ross' decision to stop in the #1 lane of a busy freeway. As noted above, Mr. Ross noticed a lean in his vehicle approximately a minute and a half prior to the blowout. This could have been sufficient time for Mr. Ross to make his way to the shoulder or exit the freeway. Even after the tire blew out, Mr. Ross regained control of his car but did not make any effort to pull the car over to the right or exit the freeway. (Ross Depo. 83:7-11.) After getting the flat, Mr. Ross started to lose control of his vehicle but then started to slow down and regained control. (*Id.* at 79:18-80:2; 81:3-82:2.) While Mr. Ross did regain control of the car, he was still of the opinion that it would not be safe to attempt to cross four lanes of traffic to attempt and exit the freeway. (*Id.* at 81:3-82:5; 85:16-86:16.)

Application of Doctrine is a Jury Question

As the California Supreme Court long ago held, ordinarily “whether a person has been suddenly confronted with imminent peril is a question of fact to be submitted to the jury.” (*Leo v. Dunham* (1953) 41 Cal.2d 712, 715.) Likewise, the California Supreme Court has held that when faced by an emergency “it is a question for the trier of fact to determine whether the person acted with reasonable care under all the circumstances.” (*Reynolds v. Filomeo* (1951) 38 Cal.2d 5, 14 citation omitted.)

Later cases have confirmed this procedure. (See e.g. *Warren v. Sullivan* (1961) 188 Cal.App.2d 150, 154 [“[O]rdinarily, whether a person has been suddenly confronted with imminent peril, or whether such peril was brought about through her own negligence, is a question of fact for the jury.”]; *Damele v. Mack Trucks* (1990) 219 Cal.App.3d 29, 37 [“Whether the conditions for application of the imminent peril doctrine exist is itself a question of fact to be submitted to the jury.”]; *Desrosiers v. Flight Int’l* (9th Cir. Ct. of Appeal 1998) 156 F.3d 952, 958 [same].) It is a “rare case” where the rule applies at a summary judgment motion. (*Shiver*, supra, 24 Cal.App.5th at 397.)

Here, we do not have the ‘rare case’ where the Court can determine as a matter of law that the ‘sudden emergency’ doctrine applies. It is properly a question of fact for the jury to decide if the tire blowout was ‘sudden and unexpected’ and whether Mr. Ross’ acted as a ‘reasonably careful person would have acted in a similar situation.’

Conclusion

Defendant/Cross-Complainant, Damien Sean Lamont Ross’ Motion for Summary Judgment is **denied**.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Amazon and Sokolovski’s Objections: (Both parties make the same objections, so they are addressed together.)

Objection 1: Overruled.

Objection 2: Sustained (Cal. Evid. Code §§ 1200, 1400-1401; *Box v. California Date Growers Assn.* (1976) 57 Cal.App.3d 266, 270 [“Indeed, it is well established that traffic accident reports are not admissible in evidence.”])

Objection 3: Sustained (Cal. Evid. Code §§1400-1401; 1200.)

10. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

HEARING IN RE: JOINDER FOR MOTION FOR RECONSIDERATION OF ORDER GRANTING DAMIEN SEAN LAMONT ROSS'S MOTION FOR SUMMARY JUDGMENT

FILED BY: SOKOLOVSKI, EVGENY

TENTATIVE RULING:

See Line 9.